



SPONSOR: Rep. Carson & Sen. Huxtable

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 221

AN ACT TO AMEND TITLE 3 OF THE DELAWARE CODE RELATING TO PESTICIDES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Three-fifths of all members elected to each house thereof concurring therein):

1 Section 1. Amend § 1203, Title 3 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1203. Regulation; duties and powers of Department.

4 (a) In order to regulate the sale ~~and/or~~ and use of pesticides and devices in this State, the Department shall, by
5 regulation, provide that every pesticide and device distributed ~~and/or~~ or used within this State shall be duly registered with
6 the Department. The Department, with the approval of the Secretary of Agriculture, shall establish a biennial registration
7 fee, not to exceed ~~\$140,~~ \$500, for each pesticide or device registered. The fee established by the Secretary of Agriculture
8 shall approximate and reasonably reflect all costs necessary to defray the expenses of the Department's activities pursuant
9 to this chapter. At the beginning of each calendar year, the Department shall compute the appropriate pesticide or device
10 registration fee. All revenue generated by this fee shall be deposited in an appropriated special fund account in the
11 Department of Agriculture.

SYNOPSIS

This Act allows the Department of Agriculture to increase the biennial pesticide registration fee, which currently may not exceed \$140, up to a maximum fee of \$500. This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

This Act requires a greater than majority vote for passage because § 10 of Article VIII of the Delaware Constitution requires the affirmative vote of three-fifths of the members elected to each house of the General Assembly to increase the effective rate of any tax levied or license fee imposed.